

**LLM litigation** case updates get updates by email  
contact legal team

---

---

JUNE 28, 2023

Hello. This is [Joseph Saveri](#) and [Matthew Butterick](#). In November 2022, we teamed up to file a lawsuit [challenging GitHub Copilot](#), an AI coding assistant built on unprecedented open-source software piracy. In January 2023, we filed a lawsuit [challenging Stable Diffusion](#), an AI image generator built on the heist of five billion digital images.

Since the release of OpenAI's ChatGPT system in March 2023, we've been hearing from writers, authors, and publishers who are concerned about its uncanny ability to generate text similar to that found in copyrighted textual materials, including thousands of books.

Today, on behalf of two wonderful [book authors](#)—[Paul Tremblay](#) and [Mona Awad](#)—we've filed a class-action lawsuit against [OpenAI](#) challenging [ChatGPT](#) and its underlying large language

models, [GPT-3.5](#) and [GPT-4](#), which remix the copyrighted works of thousands of book authors—and many others—without consent, compensation, or credit.

Today's filings:

- [Class-action complaint](#)
- [Class-action complaint: Exhibits](#)

It's a great pleasure to stand up on behalf of authors and continue the vital conversation about how AI will coexist with human culture and creativity.

---

JULY 7, 2023

We've filed a second class-action lawsuit against OpenAI on behalf of three more wonderful [book authors](#)—[Sarah Silverman](#), [Chris Golden](#), and [Richard Kadrey](#). The claims are otherwise similar to the initial complaint filed on June 28.

Today's filings against OpenAI:

- [Class-action complaint](#)
- [Class-action complaint: Exhibits](#)

On behalf of the same three plaintiffs, we've also filed an initial class-action lawsuit against [Meta](#) challenging LLaMA, a set of large language models trained in part on copyrighted books.

Today's filings against Meta:

- [Class-action complaint](#)
- [Class-action complaint: Exhibits](#)

---

[OpenAI](#), founded by Elon Musk and Sam Altman in 2015, is based in San Francisco. [According to Altman](#), the two started OpenAI as a nonprofit venture “to develop a human positive AI ... freely owned by the world.”

OpenAI’s status as a nonprofit was critical to its initial positioning. As Altman [said then](#), “anything [OpenAI] develops will be available to everyone.” Why? Because [they believed](#) this approach was “the actual best thing for the future of humanity.”

When asked about the possibility of misuse by a hypothetical Dr. Evil figure—the guy [who wanted to](#) “hold the world ransom for 100 billion dollars”—[Altman contended](#) that OpenAI was the antidote: “if Dr. Evil gets [a powerful AI] and there is nothing to counteract it, then we’re really in a bad place.”

Even then, however, there was more to the Altman–Musk combination than their deeply held commitment to put humanity above profit. Musk, as CEO of Tesla, and Altman, then serving as president of startup incubator [Y Combinator](#), planned to pool data from their respective companies for use as training data in future OpenAI systems. [According to reporting](#) at the time, Altman claimed that “Y Combinator companies will share their data with OpenAI” and that this data would be “pair[ed] ... with Tesla’s” so that OpenAI would have access to training data sufficient to “rival Google.”

The honeymoon would end. In 2018, [Musk left OpenAI](#) amidst disputes with Altman over its direction. In 2019, Altman reversed himself on OpenAI’s nonprofit purity and created a

for-profit subsidiary. Later that year, OpenAI took a \$1 billion investment from Microsoft. By January 2023, Microsoft had progressively increased its investment to \$13 billion.

In February 2023, Musk sharply criticized OpenAI, saying that it “was created as an open source ... non-profit company” but had “become a closed source, maximum-profit company effectively controlled by Microsoft.” By March 2023, Altman’s new “grand idea” was that “OpenAI will capture much of the world’s wealth”. How much? Altman suggested “\$100 billion, \$1 trillion, \$100 trillion.” The total United States money supply, according to the broadest measure (called M2), currently sits at roughly \$20.8 trillion.

---

Meta is a maker of virtual-reality products, including Horizon Worlds. Meta also sells advertising on its websites Facebook, Instagram, and WhatsApp. In 2019, Meta (then known as Facebook) was fined \$5 billion by the FTC for privacy violations arising from improper handling of personal data. More recently, Meta was fined €1.3 billion by the EU, also for privacy violations arising from improper handling of personal data.

Since 2013, Meta has operated an AI research lab, called Meta AI, founded by Mark Zuckerberg and Yann LeCun. Though in the past, Meta has used AI to spread fake news and hate speech, currently Meta AI is working on applying AI technology to selling advertising.

In February 2023, to compete with OpenAI’s ChatGPT system, Meta AI released a set of large language models called LLaMA. Though Meta had intended to share LLaMA only with a select group of users, the models soon leaked to a public internet site. This led to an inquiry by the US Senate Subcommittee on Privacy, Technology, and the Law, which noted the “potential for

[LLaMA's] misuse in spam, fraud, malware, privacy violations, harassment, and other wrongdoing and harms.”

---

Though a large language model is a software program, it's not created the way most software programs are—that is, by human software engineers writing code.

Rather, a large language model is “trained” by copying massive amounts of text from various sources and feeding these copies into the model. (This corpus of input material is called the *training dataset*).

During training, the large language model copies each piece of text in the training dataset and extracts expressive information from it. The large language model progressively adjusts its output to more closely resemble the sequences of words copied from the training dataset. Once the large language model has copied and ingested all this text, it is able to emit convincing simulations of natural written language as it appears in the training dataset.

Much of the material in the training datasets used by OpenAI and Meta comes from copyrighted works—including books written by Plaintiffs—that were copied by OpenAI and Meta without consent, without credit, and without compensation. Many of these books likely came from “[shadow libraries](#)”, websites that distribute thousands of pirated books and publications. These flagrantly illegal shadow libraries have long been of interest to the AI-training community: for instance, an AI training dataset called “[Books3](#)” (used by Meta) includes a recreation of a

shadow library called [Bibliotik](#) and contains nearly 200,000 books.

Books in particular are recognized within the AI community as valuable training data. A team of researchers from MIT and Cornell [recently studied](#) the value of various kinds of textual material for machine learning. Books were placed in the top tier of training data that had “the strongest positive effects on downstream performance.” Books are also comparatively “much more abundant” than other sources, and contain the “longest, most readable” material with “meaningful, well-edited sentences”.

Right—because as usual, “generative artificial intelligence” is just human intelligence, repackaged and divorced from its creators.

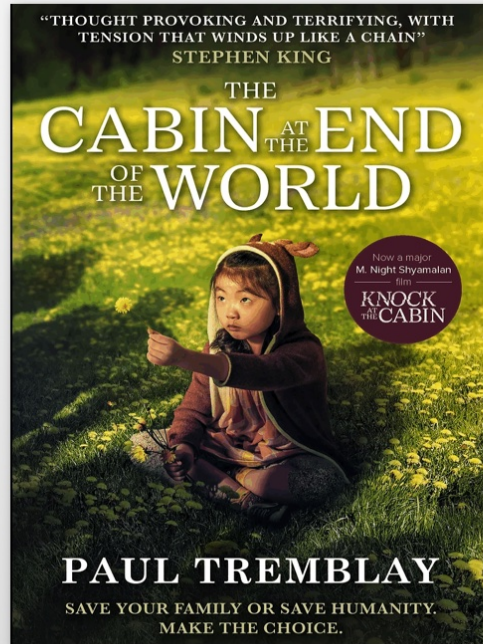
And the grift doesn’t end at training. The project of steering AI systems toward something other than the worst version of humanity is known as [alignment](#). So far, the best known technique is euphemistically called [reinforcement learning from human feedback](#), which for OpenAI entails [hiring low-wage foreign workers](#) to spend hours with ChatGPT, [nudging it away](#) from toxic results.

---

---

Our plaintiffs are accomplished book authors who have stepped forward to represent a class of thousands of other writers afflicted by generative AI.

---



Paul Tremblay has won the Bram Stoker, British Fantasy, and Massachusetts Book awards and is the author of [Survivor Song](#), [The Cabin at the End of the World](#), [Disappearance at Devil's Rock](#), [A Head Full of Ghosts](#), the crime novels [The Little Sleep](#) and [No Sleep Till Wonderland](#), and the short story collection [Growing Things and Other Stories](#).

His essays and short fiction have appeared in the *Los Angeles Times*, *New York Times*, *Entertainment Weekly* online, and numerous year's-best anthologies. He has a master's degree in mathematics and lives outside Boston with his family.

---





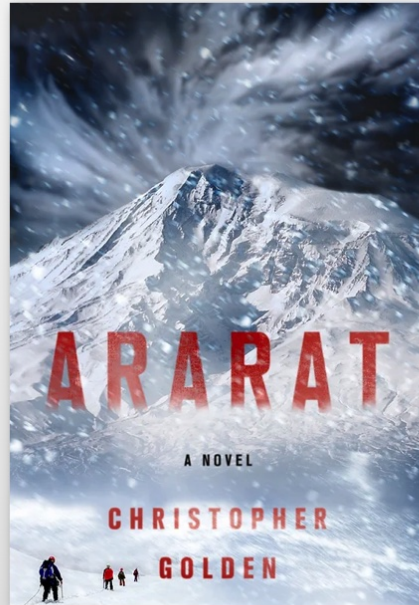
[Sarah Silverman](#) is a two-time Emmy Award-winning comedian, actress, writer, and producer. She currently hosts a critically acclaimed weekly podcast, [The Sarah Silverman Podcast](#). She can next be seen as the host of [TBS' Stupid Pet Tricks](#), an expansion of the famous David Letterman late-night segment. In spring 2022, Silverman's off-Broadway musical adaptation of her 2010 New York Times bestselling memoir [The Bedwetter: Stories of Courage, Redemption, and Pee](#) had a sold-out run with the [Atlantic Theatre Company](#).

On stage, Silverman continues to cement her status as a force in stand-up comedy. Silverman also lent her voice as "Vanellope" in the Oscar-nominated smash hit [Wreck It Ralph](#) and Golden Globe-nominated [Ralph Breaks the Internet: Wreck-it Ralph 2](#). Silverman was nominated for a 2009 Primetime Emmy Award for "Outstanding Lead Actress in a Comedy Series" for portraying a fictionalized version of herself in her Comedy Central series [The Sarah Silverman Program](#). In 2008, Silverman won a Primetime Emmy Award for "Outstanding Original Music and Lyrics" for her [musical collaboration](#) with Matt Damon.

Silverman grew up in [New Hampshire](#) and attended New York University for one year. In 1993 she joined Saturday Night Live



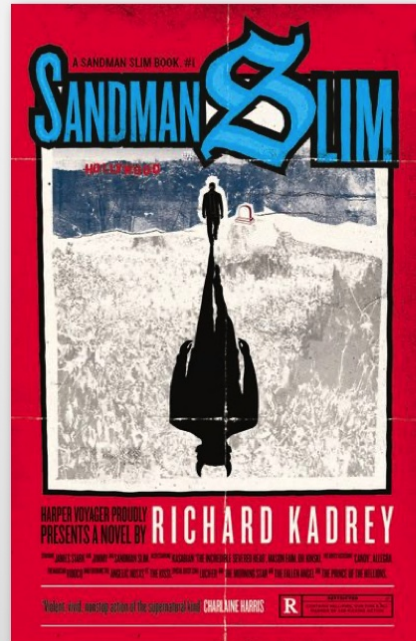
as a writer and feature performer and has not stopped working since. She currently lives in Los Angeles.



Christopher Golden is the New York Times bestselling, Bram Stoker Award-winning author of such novels as [Road of Bones](#), [Ararat](#), [Snowblind](#), and [Red Hands](#). With Mike Mignola, he is the co-creator of the [Outerverse](#) comic book universe, including such series as [Baltimore](#), [Joe Golem: Occult Detective](#), and [Lady Baltimore](#). As an editor, he has worked on the short story anthologies [Seize the Night](#), [Dark Cities](#), and [The New Dead](#), among others, and he has also written and co-written comic books, video games, screenplays, and a network television pilot. In 2015 he founded the popular [Merrimack Valley Halloween Book Festival](#).

He was born and raised in Massachusetts, where he still lives with his family. His work has been nominated for the British Fantasy Award, the Eisner Award, and multiple Shirley Jackson Awards. For the Bram Stoker Awards, Golden has been nominated ten times in eight different categories, and won twice.

His original novels have been published in more than fifteen languages in countries around the world.



Richard Kadrey is the New York Times bestselling author of the [Sandman Slim](#) supernatural noir series. [Sandman Slim](#) was included in Amazon’s “100 Science Fiction & Fantasy Books to Read in a Lifetime,” and is in development as a feature film. Some of Kadrey’s other books include [King Bullet](#), [The Grand Dark](#), [Butcher Bird](#), and [The Dead Take the A Train](#) (with Cassandra Khaw). He’s written for film and comics, including [Heavy Metal](#), [Lucifer](#), and [Hellblazer](#). Kadrey also makes music with his band, [A Demon in Fun City](#).

If you’d like to receive occasional email updates on the progress of the cases, please use the links below.

→ [sign up for OpenAI / ChatGPT email updates](#)

→ [sign up for Meta / LLaMA email updates](#)

---

---

If you're a member of the press or the public with other questions about this case or related topics, email [llmlitigation@saverilawfirm.com](mailto:llmlitigation@saverilawfirm.com). (Though please don't send confidential or privileged information.)

This web page is informational. General principles of law are discussed. But neither Matthew Butterick nor anyone at the Joseph Saveri Law Firm is *your* lawyer, and **nothing here is offered as legal advice**. References to copyright pertain to US law. This page will be updated as new information becomes available.